

**IN THE LAHORE HIGH COURT,
RAWALPINDI BENCH, RAWALPINDI
JUDICIAL DEPARTMENT**

Adnan Mughal	Versus	Primary and Secondary Healthcare Department, Government of the Punjab, etc.
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Date of Hearing:	14.01.2025
Petitioner by:	M/s. Muhammad Ilyas Shaikh, ASC, Tanveer Iqbal Khan, ASC, Ch. Rizwan Elahi, Mehmood Azam Balouch, Ch. M. Waqas, Ali Tanveer, Ch. Ehtram Habib, Malik Muhammad Asif Nawaz, Shaikh Saddam Tariq, Najma Malik, Muhammad Danyal Sheikh, Ahmad Ejaz Yousaf, Rana Waleed Ali, Malik Shoukat Mehmood, Fazal-ur-Rehman, Liaqat Ali Khan and Najam Hanif Sheikh, Fazli Qadir Khan and Hassan Muneeb Zia, Advocates.
Respondents by:	Mr. Abid Aziz Rajori, Assistant Advocate-General with Jauhar Aqeel, Law Officer, CEO, DHA, Rawalpindi. Mr. Arshad Mahmood Malik, Assistant Attorney General.

JAWAD HASSAN, J. Through this writ Petition under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 (the “Constitution”) the Petitioner has prayed as under:

“It is, therefore, respectfully prayed that this Hon’ble Court may very graciously be pleased to direct the Respondents No.1 and 2 to provide medical treatment to the Advocates enrolled in Punjab Bar Council/practicing in Punjab Area. It is

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also prayed that the Respondent No.1 and 2 be further directed that the Advocates on the Panel of Advocates of Government departments be provided benefits of free medical treatment from their Department as per with their officers of BPS 17 and 18. Any other relief this Hon'ble Court deems just may also be provided."

2. Context of the case is that the Petitioner/Adnan Mughal, who is an Advocate by profession, on 03.06.2024, while seeking medical assistance at the District Headquarters Hospital, Rawalpindi, faced mistreatment and disrespect from the hospital staff. He was neither properly attended to by the doctors nor provided adequate treatment, despite identifying himself as a practicing Advocate. Learned counsel contends that such treatment violates his fundamental rights enshrined under Articles 9, 14, and 25 of the Constitution. Consequently, he seeks directions from this Hon'ble Court to ensure the provision of free and adequate medical treatment to Advocates enrolled in the Punjab Bar Council or practicing within Punjab, as well as parity in medical benefits for Panel Advocates of Government departments with officers in BPS 17 and 18. Hence, this Petition.

3. When confronted to the maintainability of this Petition, Ch. Rizwan Elahi, Advocate has submitted that the Petitioner is an Advocate by profession and practicing at the Rawalpindi Bar Association and High Court Bar Association, Rawalpindi. Added that the Petitioner is only seeking directions to the Respondents/Health Secretaries to provide free medical treatment to the "Lawyers/Advocates" as they are rendering professional services to the public and contributing to the administration of justice. He further argued that the Advocates enrolled with the Punjab Bar Council or practicing in the Punjab should be treated for medical facilities at par with gazetted officers, as they often assist Government departments and perform duties akin to public servants. The learned counsel emphasized that this request is not only reasonable but also in alignment with the principles of equity and justice.

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4. Conversely, learned Law Officer has objected to the maintainability of this Petition and stated on the basis of report and parawise comments, that the Respondent No.1/Secretary, Primary and Secondary Healthcare Department, Government of the Punjab, has already notified the free medical treatment to the Practicing Lawyers and their dependents on the provision of Punjab Bar Council membership card under the administrative control of P&SHD Hospitals (RHC, THQ and DHQ) (Non-teachings), vide Notification No.SO(H&D)7-1/2018-(MISC), dated 21.05.2018. Further stated that the Respondent No.2/District Health Officer (Preventive Services), District Health Authority, Rawalpindi relied on the report and parawise comments as submitted by the Respondent No.1.

5. Heard. Record perused.

6. The primary concern of this Court is to address the welfare of Advocates/Lawyers, particularly their access to medical facilities, which is essential to their professional and personal well-being. As officers of the Court and contributors to the administration of justice, Lawyers hold a pivotal role in upholding the rule of law and serving the public interest. Therefore, the Court acknowledges the need to safeguard their rights to health and well-being within the framework of the Constitution, relevant statutes, and notifications.

7. The report and parawise comments of the Respondent No.6/Secretary, Ministry of Law and Parliamentary Affairs, Government of the Punjab, Lahore, is of significant importance. In the report, the Respondent No.6 has categorically stated that to protect Advocates from incidents of assault, criminal force, intimidation, threats, and to promote their welfare, Parliament has promulgated the **Lawyers Welfare and Protection Act, 2023** (the "Act"). A mechanism has been devised through this Act to ensure that Advocates can render their professional services without fear of external influence, thereby safeguarding the administration of justice and upholding the rule of law. Section 11 of the Act stipulates that the Government shall notify, with respect to all Government and Semi-Government hospitals, the right of every

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Advocate, their spouse, and dependent children to medical treatment on par with gazetted Government officers, subject to the presentation of their official cards and verification by the respective Bar Councils.

8. It is worth mentioning that the enactment of the Act marks a significant milestone in Pakistan's legislative history, reflecting the legislature's commitment to the welfare and protection of Advocates. This Act recognizes the critical role that Advocates play in maintaining the rule of law, safeguarding justice, and contributing to the public interest. Advocates are integral part to the judicial system, ensuring that justice is administered impartially and that individuals' rights are protected. As such, the legislature has explicitly affirmed their professional significance and deemed it necessary to extend a comprehensive legal framework to ensure their well-being and protection. The Act includes provisions designed to safeguard the welfare of Advocates, with particular emphasis on health, financial stability, and general protection. Chapter III of the Act outlines key welfare provisions, including healthcare services equivalent to those provided to government officers, financial support systems and a "Shuhada Package" for Advocates who lose their lives in the line of duty. These provisions aim to provide necessary security and support, recognizing the contributions of Advocates and addressing the hardships they may face in their professional roles. Thus, the Act stands as a legislative acknowledgment of the invaluable contributions of Advocates to the legal and judicial systems. It seeks to create a professional environment that ensures their well-being while supporting their ongoing role in upholding justice and the rule of law in Pakistan. Through this legislative step, the legislature has laid the foundation for a more robust framework for the legal profession, ensuring that Advocates are not only respected for their work but are also adequately protected and supported in their critical role. Section 11 of the Act purely deals with the provision of medical and health facilities to the Lawyers, which reads as follows:

11. Provision of health facilities.

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The Government shall notify, in relation to all the Government and Semi-Government hospitals, the right to every advocate, his spouse, and dependent children for medical treatment at par with the gazetted Government officer, subject to presentation of their official cards and verification by the respective Bar Councils: Provided that for the purpose of this section, the parents, minor children, and spouse of the advocate shall also be entitled to the same facilities.

9. Perusal of record reveals that the Respondent No.1/Secretary, Primary and Secondary Healthcare Department, has already issued a Notification No.SO(H&D)7-1/2018-(MISC), dated 21.05.2018 to (1) All Chief Executive Officers, District Health Authorities, in the Punjab; (2) All Medical Superintendents, District Headquarters Hospital in the Punjab and (3) All Medical Superintendents, Tehsil Headquarters Hospital, in the Punjab, addressing the concerns raised by the Petitioner. The relevant paragraph of the same reads as follows:

- “2. I am, directed to request you to ensure provision of free medical facilities in all DHQs and THQs in the Punjab under the administrative control of Primary & Secondary Healthcare Department to the practicing Lawyers and their dependents upon the provision of Punjab Bar Council membership cards.
3. The compliance is directed in letter and spirit.”

It is also pertinent to highlight that Rule 10 of the Punjab Government Rules of Business, 2011 (the “Rules of Business”) clearly states that the Secretary is the **official head** of the Department and is responsible for its efficient administration and discipline, for the conduct of business assigned to the Department and for the observance of laws and rules, as held by the Supreme Court of Pakistan in Messrs Mustafa Impex, Karachi and others versus Government of Pakistan through Secretary Finance, Islamabad and others (PLD 2016 SC 808) by holding that the Rules of Business flowed from the Constitution is mandatory and binding on the Government. This Court has also strengthened the role of Secretary in the recent judgment passed in the case cited as PIA Officers Cooperative Housing Society Limited versus Province of Punjab etc. (2024 CLC 947) and the judgment dated 10.12.2024,

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passed in W.P. No.3768 of 2024, titled as “Adnan Arif versus Province of Punjab, etc.” (2024 LHC 5811) (LHC Citation), wherein it has been held that:

5. Here in this case, Rules 3 and 10 of the Punjab Government Rules of Business, 2011 (the “Rules”) are relevant. Under Rule 3(3) of the Rules, business of the Government has been distributed amongst several Departments in the manner indicated in the Second Schedule and functions of the Secretary are described under Rule 10 of the 2011 Rules, which is reproduced hereunder for ease of the matter:-

“10. Functions of the Secretary.–

...

This Court, while interpreting the aforesaid provisions of the Rules first time has given verdict regarding responsibilities and functions of the heads of government departments in the case of PIA Officers Cooperative Housing Society Ltd. through President versus Province of Punjab through Secretary to the Government of Punjab, Cooperatives Department, Lahore and 4 others (2024 CLC 947) by holding that the Secretary, being official head of the department, is responsible for its efficient administration and discipline, for the conduct of business assigned to the department and for the observance of laws and rules. This concept has subsequently been further strengthened by this Court in another case cited as Muhammad Banaras versus Government of the Punjab etc. (PLJ 2024 Lahore 242).

10. In this case, the Respondent No.1/Secretary, Primary and Secondary Healthcare Department, Government of the Punjab, Lahore, being the **Official Head** of the Department has already issued the aforesaid Notification to all the Chief Executive Officers, District Health Authorities; the Medical Superintendents, District Headquarters Hospital; and the Medical

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Superintendents, Tehsil Headquarters Hospital, in the Punjab. Therefore, under the *Doctrine of Sovereignty*, these institutions are bound to adhere to the aforesaid notification/commitments/policy issued by their own Department. This doctrine underscores the principle that once a directive is issued by a higher authority, all subordinate bodies within the administrative structure are legally obligated to follow it. In this regard reliance is placed on the judgment of this Court reported as Mst. Fatima Faryad etc. v. Government of Punjab etc. (2020 CLC 836) has held that:

“under the Doctrine of Sovereignty they are bound to adhere to their commitment in the light of dictum laid down in the case of Dewan Salman Fibber Ltd. and others v. Federation of Pakistan, through Secretary, M/o Finance and others (2015 PTD 2304) whereby this Court while laying emphasis on the importance of the Government adhering to severing commitments made by it, whether in the form of the statutory orders or notification issued by it or in the shape of policies announced by it held that "the commitments made on behalf of the Government of the Islamic Republic of Pakistan should neither be lightly disregarded nor deliberately ignored. The orderly development of a civilized society requires that citizens should be entitled to place implicit faith and confidence on representations which are made by or on behalf of the duly constituted governmental authorities. The importance of this underlies the sustained thrust towards the industrialization of the country in which both the nationals of Pakistan as well as nationals of foreign countries should have complete confidence that official commitments will be duly honored and acted upon in letter and spirit."

11. When confronted with the aforesaid situation and the issuance of Notification No.SO(H&D)7-1/2018-(MISC), dated 21.05.2018, learned counsel for the Petitioner expressed satisfaction with the same. However, he

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stated that the Petitioner would be satisfied if directions were issued to the Respondents to implement the said notification in its true letter and spirit.

12. Since this case relates to provision of medical relief i.e. treatment and facilities to the Lawyers, which is a fundamental right as enshrined under Article 38(d) of the Constitution which states that *the State shall provide basic necessities of life, such as food, clothing, housing, education and **medical relief**, for all such citizens, irrespective of sex, caste, creed or race, as are permanently or temporarily unable to earn their livelihood on account of infirmity, sickness or unemployment.* This Article 38(d) is read with the Article 9 (right to life) which states that *no person shall be deprived of life or liberty save in accordance with law*; and Article 3 (right of elimination of exploitation), which states that *the State shall ensure the elimination of all forms of exploitation and the gradual fulfillment of the fundamental principle, from each according to his ability to each according to his work.* This Court in the judgment reported as “Muhammad Ahmad Pansota and others V/S Federation of Pakistan etc.” (PLD 2020 Lahore 229) has already observed that the **Principle of Policy is read with Fundamental Rights**. Reliance in this regard is also placed on the judgment of the Hon’ble Supreme Court of Pakistan reported as SUO MOTU CASE NO.13 OF 2009 (PLD 2011 Supreme Court 619). Moreover, this Court in the judgment reported as HAROON FAROOQ Versus GOVERNMENT OF PUNJAB through Chief Secretary and 9 others (2023 CLC 1) has held that *Principles of policy under Article 38 of the Constitution oblige the State to secure well-being of people to provide basic necessities of life such as food, clothing, housing, education and medical relief, irrespective of sex, caste, creed or race. Such goal can only be achieved by the State by ensuring minimum standards comprised in the term 'life' and to prevent climate crisis so that human activity can be carried on without harmful effects of severe weather events which are caused by climate change. The Concept of penumbras has been employed to enlarge meaning of life and if climate crisis triggers lifechanging events, then the right conferred by Article 9 is in serious jeopardy.*

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13. This Court appreciates the positive steps taken by Respondent No.1/Secretary, Primary and Secondary Healthcare Department, Government of the Punjab, Lahore, particularly the issuance of Notification No.SO(H&D)7-1/2018-(MISC), dated 21.05.2018. Hence, this writ Petition stands **disposed of** with the following directions:

- i. That under the *Doctrine of Sovereignty*, all Respondents are bound to comply with Notification No.SO(H&D)7-1/2018-(MISC), ensuring the provision of medical treatment to Advocates and their dependents as outlined therein.
- ii. The Respondents, including the Secretary, Primary and Secondary Healthcare Department, Government of the Punjab, and relevant authorities, are directed to ensure the effective implementation of the said notification across all District Headquarters (DHQs), Tehsil Headquarters (THQs), and Rural Health Centers (RHCs) in region. This includes providing free medical treatment to practicing Advocates and their dependents upon presentation of the Punjab Bar Council membership card and extending the same benefits to Advocates on the Panel of Advocates of Government departments, ensuring medical treatment on par with officers of BPS 17 and 18.
- iii. The Respondents shall ensure full compliance of the provisions of the notification, safeguarding the rights of Advocates and their families to the medical treatment as stipulated by the Government.

(JAWAD HASSAN)
JUDGE

ZIA.UR.REHMAN